

CODE

Bill of rights

Draft for member review | 29 September 2026

Plain language summary

The same vote, the same information right, and the same program rules for every member, on reserve or off reserve. Members who live away remain members. A custom residency test for the vote carries Charter risk.

Working draft. Not adopted law. Not a legal opinion. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose and authority

1.1 This instrument states the rights of every member. A right that depends on who a member knows is not a right under this instrument.

1.2 It is made under the same authority as the constitution. It applies on reserve and off reserve.

1.3 It adopts, as the First Nation's own rule, the equality standard in Canadian Charter of Rights and Freedoms subsection 15(1), quoted in the constitution. Charter subsection 15(2) says subsection (1) does not preclude a program whose object is the amelioration of conditions of disadvantaged individuals or groups. A published member program may set eligibility. It must not set it by friendship, family of a councillor, or place of residence, except where a statute requires residence, and that exception must be quoted in the decision.

Part 2. The rights

2.1 Every elector has the right to vote for the chief and for every councillor position, whether the elector lives on reserve or off reserve. Every elector has the right to be nominated for chief and for a councillor position that has no residence qualification. Only an elector who ordinarily resides off reserve may be nominated for the off-reserve councillor position. An elector who lives on reserve may still vote for that position.

Indian Act subsection 77(1) limits the vote for chief, in an election under that Act, to an elector ordinarily resident on the reserve. In *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, [1999] 2 S.C.R. 203, the Supreme Court of Canada held that this residency limit infringed Charter section 15. The case is about subsection 77(1). It does not by itself rewrite a custom code. A custom code that copies the residency limit carries the same Charter risk. This instrument does not copy it. If section 74 or the First Nations Elections Act applies, the statute controls, and this section cannot override it.

2.2 Every member has the right to ask for a record under the right-to-information instrument, and to receive a written yes or no within the days stated there.

2.3 Every member has the right to see the budget, the quarterly statement, the audited consolidated financial statements, and the Schedule of Remuneration and Expenses, on the days stated in the band money instrument.

2.4 Every member has the right to one written housing decision and one written education decision, under those instruments, and to one appeal.

2.5 Every member has the right to report a breach to the appeal body without going through the chief, and the right not to be punished for a report made in good faith. The whistleblower instrument sets the days and the consequences.

2.6 A member may speak at a general meeting in an Indigenous language used by members. The English text of a law or resolution is the text that is filed. A translation must be posted within 30 days of a written request by 10 members. If it is late, the records officer must post the reason on the due date.

2.7 A member must not be refused a program, a job interview that was publicly posted, or a place on a list because the member complained, voted against a councillor, or lives off reserve. A refusal that cites one of those reasons is void. The appeal body must order the application reheard by people who did not make the refusal, within 21 days of a complaint.

Part 3. Limits

3.1 These rights do not include a right to another member's personal health record, a right to a house when none is vacant, or a right to a payment that is not in an adopted budget.

3.2 A limit on a right in this instrument must be written in the instrument that creates it, must name the section, and must say how many days apply. A verbal limit is void.

Part 4. How a member uses a right

4.1 A member enforces a right by a written complaint to the appeal body within 60 days of learning of the breach, and not later than one year after the breach. The appeals instrument sets the rest of the process.

4.2 The appeal body must decide in writing within 30 days of a complete complaint. If it does not, the member may post the complaint, and council honoraria stop on day 31 until the decision is posted.

4.3 Nothing in this instrument removes a right to go to court, including under Charter section 24. A public statement that names a person and asserts a crime or dishonesty can be defamation. A complaint to the appeal body should state what happened, on what date, and which section is in issue. The public log publishes the outcome, not an unverified accusation.

Part 5. Amendment

5.1 Council must not amend this bill of rights by resolution. A resolution that purports to amend it is void on the day it is signed. A person who signs that resolution must not move a money resolution for 90 days. The appeal body must post the breach within 14 days.

5.2 An amendment passes only if a majority of all electors vote yes. A majority of the ballots cast is not enough. The Indian Act, section 2(3)(a), uses that same count for a power of the band: consent of a majority of the electors.

5.3 The electoral officer must post the full proposed text at least 45 days before the vote and must certify the elector list 30 days before the vote. A vote held on shorter notice is void.

5.4 The electoral officer must post the count within 3 days. If the count in 5.2 is not met, the amendment does not come into force.

Part 6. Review and coming into force

6.1 The appeal body must review this bill of rights every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this bill of rights.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this bill of rights comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this bill of rights replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.